

M/s Maya Cold Storage & Food Products (Pvt.) Ltd. v. Dakshinanchal Vidyut Vitran Nigam & Ors.

High Court of Judicature at Allahabad · Division Bench · 30 August 2022 · Writ-C No. 30800 of 2010 · **Writ dismissed as infructuous; Para 4.20 additional security not decided**

HEADNOTE

A challenge to additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar pending writs and the demand was restrained until further orders. The petition was later dismissed as infructuous by efflux of time, without deciding Para 4.20.

FACTUAL SUMMARY

The petitioner, a consumer of Dakshinanchal Vidyut Vitran Nigam, challenged a demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 26 May 2010 the Court connected the writ with W.P. No. 30582 of 2009 (M/s Vehina Steels) and similar matters, allowed three weeks for a counter-affidavit, and restrained the respondents from demanding additional security until further orders. On 30 August 2022 counsel stated the petition had become infructuous by efflux of time. It was dismissed as such.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging additional security demanded under Para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar pending matters and, following the interim in W.P. No. 30582 of 2009, the respondents were restrained from demanding additional security until further orders. The petition was later dismissed as infructuous by efflux of time, without a decision on Para 4.20. ¶ 1-2

PRINCIPLE TAGS

additional-security A challenge to additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar pending writs and the demand was restrained until further orders. The petition was later dismissed as infructuous by efflux of time, without deciding Para 4.20. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Writ dismissed as infructuous by efflux of time without deciding the challenge. ¶ 2